

ASCII MASTER FLOW – PANEL 1/9: From Objectives Resolution to authoritative Preamble

13 DEC 1946 Objectives Resolution moved by Jawaharlal Nehru

22 JAN 1947 Objectives Resolution adopted

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committee work + Drafting Committee language + Assembly debate

26 NOV 1949

"WE, THE PEOPLE OF INDIA" adopt, enact and give the Constitution to ourselves

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24 JAN 1950 members sign the Constitution

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26 JAN 1950 Constitution commences

TEXTUAL MEMORY

source -> nature of State -> objectives -> adoption/enactment declaration

TRAP: adoption and commencement dates perform different constitutional work.

ASCII MASTER FLOW – PANEL 2/9: Clause architecture: authority, identity, ends and enactment

WE, THE PEOPLE OF INDIA

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+-- SOURCE: popular constituent authority
+-- STATE: SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC
+-- OBJECTIVES
|   +-- JUSTICE: social, economic, political
|   +-- LIBERTY: thought, expression, belief, faith, worship
|   +-- EQUALITY: status and opportunity
|   +-- FRATERNITY: dignity + unity and integrity
+-- CONSTITUENT ACT
    adopt + enact + give to ourselves
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People are the source; descriptors identify the polity;
objectives set its destination; enactment converts resolution into authority.

ASCII MASTER FLOW – PANEL 3/9: Six State descriptors: exact constitutional work

DESCRIPTOR CONSTITUTIONAL WORK

Sovereign	no external superior; internal authority under Constitution
Socialist	democratic welfare and distribution, not total statism
Secular	equal citizenship with principled regulation of religion
Democratic	popular rule through adult franchise and representation
Republic	elected, non-hereditary head of State
Integrity	territorial and civic cohesion

42ND AMENDMENT, 1976

inserted "Socialist", "Secular" and "integrity";
it did not create their entire constitutional substance.

Britain: democracy + hereditary monarchy | India: democracy + republic.

ASCII MASTER FLOW – PANEL 4/9: Justice, liberty, equality and fraternity as one system

JUSTICE: social + economic + political

-> Directive Principles and social-reform powers

LIBERTY: thought + expression + belief + faith + worship

-> rights, subject to constitutional limits

EQUALITY: status + opportunity

-> non-discrimination plus corrective measures

FRATERNITY: dignity + unity and integrity

-> personal worth joined to common citizenship

BALANCE

liberty without equality entrenches privilege;

equality without liberty risks coercion;

fraternity sustains both as a shared constitutional project.

ASCII MASTER FLOW – PANEL 5/9: Berubari Union (1960), Kesavananda Bharati (1973) and LIC OF INDIA (1995): legal status settled

BERUBARI UNION (1960)

- +-- Preamble is a key to the makers' minds
- +-- advisory opinion did not regard it as part of Constitution

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KESAVANANDA BHARATI (1973)

- +-- Preamble is part of Constitution
- +-- amendable under Article 368
- +-- amendment cannot damage basic structure

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LIC OF INDIA (1995)

- +-- reaffirms Preamble as integral to Constitution

TWO LIMITS

No independent legislative power comes from Preamble.

No standalone directly enforceable right comes from Preamble.

ASCII MASTER FLOW – PANEL 6/9: Amendability stops at constitutional identity

ARTICLE 368

- +-- reaches Preamble because it is part of Constitution
- +-- 42nd Amendment validly added three expressions
- +-- BUT amending power is limited

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BASIC-STRUCTURE TEST

Does change alter wording while preserving constitutional identity?

- > permissible amendment

Does change destroy sovereignty, democracy, secularism, republic or dignity?

- > invalid damage to basic structure

CORRECT FORMULA

Preamble is amendable; its basic features are not abrogable.

ASCII MASTER FLOW – PANEL 7/9: How non-justiciable words produce legal force

AMBIGUOUS CONSTITUTIONAL TEXT

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Preamble identifies purpose, value and structural direction

+-- choose meaning consistent with justice, liberty and dignity

+-- reject reading defeating democratic or secular structure

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DOCTRINAL USE

+-- interpret rights and institutional powers

+-- identify basic-structure principles

+-- connect Parts III and IV

STOP RULE

Clear text cannot be rewritten by Preamble alone.

No power, offence, tax or enforceable claim arises solely from Preamble.

ASCII MASTER FLOW – PANEL 8/9: Preamble claims: problem and precise response

CLAIM

PRECISE RESPONSE

"mere ornament"	false: interpretive and structural force
"source of all government power"	false: operative provisions confer power
"directly enforceable"	false: values guide enforceable provisions
"unchangeable"	false: Article 368 applies, basic structure limits
"Socialist means State ownership"	too broad: democratic socialism is mixed
"Secular means strict separation"	incomplete: equal respect plus reform regulation
"Republic means direct democracy"	false: concerns non-hereditary headship
"integrity replaced unity"	false: 42nd added integrity after unity

Constitution in miniature, but not a miniature Constitution.

ASCII MASTER FLOW – PANEL 9/9: Exact 10/15-mark architecture: Preamble as identity and interpretive control

10 MARKS / 150 WORDS

1. Define Preamble as declaratory, identity-bearing and interpretive.
2. Decode people, State, objectives and enactment.
3. State Berubari Union (1960) -> Kesavananda Bharati (1973) shift.
4. Add no standalone power and no direct enforceability.
5. Conclude: constitutional compass bounded by operative text.

15 MARKS / 250 WORDS

1. Trace Objectives Resolution to 26 November 1949.
2. Explain popular sovereignty and six descriptors.
3. Analyse justice-liberty-equality-fraternity interdependence.
4. Use Berubari Union (1960), Kesavananda Bharati (1973) and LIC OF INDIA (1995).
5. Explain Article 368 plus basic-structure boundary.
6. Show interpretive force with one rights or federalism application.
7. Conclude: identity charter, not autonomous source of rules.